

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
MICHAEL BURRELL,

Plaintiff,

-against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER EDWIN
VEGA, POLICE OFFICER JOSEPH HELGERSON
and POLICE OFFICERS "JOHN/JANE DOE" 1-3
(INTENDED AS POLICE OFFICERS WHOSE NAMES
AND IDENTIFYING INFORMATION ARE UNKNOWN),Defendants.
-----X

To the above named Defendant(s):

Index No.:

Date original
Summons & Complaint
were filed with the Clerk:Plaintiff designates BRONX
COUNTY as the place of trialThe basis of venue is
Location where the cause of action arose**SUMMONS**Plaintiff resides at:
138 West Kingsbridge Road
Mount Vernon, New York 10550

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
December 16, 2015

Yours, etc.,

**LAW OFFICES OF IRA M. PERLMAN, P.C. and
ROBERT D. ROSEN, P.C.**

Attorneys for Plaintiff

Office & Post Office Address:66 Cuttermill Road, Suite 206
Great Neck, New York 11021
(212) 689-5000Defendants' addresses:**THE CITY OF NEW YORK**100 Church Street
New York, New York 10007
Defendants' addresses cont.:**THE NEW YORK CITY POLICE DEPARTMENT**ONE POLICE PLAZA
NEW YORK, NEW YORK 10038**POLICE OFFICER EDWIN VEGA**C/O THE NEW YORK CITY POLICE DEPARTMENT
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

Defendants' addresses cont.:

POLICE OFFICER JOSEPH HELGERSON

C/O THE NEW YORK CITY POLICE DEPARTMENT

ONE POLICE PLAZA

NEW YORK, NEW YORK 10038

POLICE OFFICERS "JOHN/JANE DOE" 1-3

**(INTENDED AS POLICE OFFICERS WHOSE NAMES
AND IDENTIFYING INFORMATION ARE UNKNOWN)**

C/O THE NEW YORK CITY POLICE DEPARTMENT

ONE POLICE PLAZA

NEW YORK, NEW YORK 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
MICHAEL BURRELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER EDWIN
VEGA, POLICE OFFICER JOSEPH HELGERSON
and POLICE OFFICERS "JOHN/JANE DOE" 1-3
(INTENDED AS POLICE OFFICERS WHOSE NAMES
AND IDENTIFYING INFORMATION ARE UNKNOWN),

Defendants.
-----X

Index No.:

VERIFIED COMPLAINT

Plaintiff, complaining of the Defendants, by his attorneys, **LAW OFFICES OF IRA M. PERLMAN, P.C.** and **ROBERT D. ROSEN, P.C.**, respectfully shows to this Court, and alleges upon information and belief, the following:

**AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL BURRELL**

1. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** created and established Defendant **THE NEW YORK CITY POLICE DEPARTMENT** under and by virtue of the laws, rules and/or regulations of Defendant **THE CITY OF NEW YORK**.

3. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** owned Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

4. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** operated Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

5. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** managed Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

6. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** controlled Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

7. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** maintained Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

8. That at all times hereinafter mentioned, Defendant **POLICE OFFICER EDWIN VEGA** was a Police Officer employed by Defendant **THE CITY OF NEW YORK**.

9. That at all times hereinafter mentioned, Defendant **POLICE OFFICER EDWIN VEGA** was employed by Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

10. That at all times hereinafter mentioned, Defendant **POLICE OFFICER JOSEPH HELGERSON** was employed by Defendant **THE CITY OF NEW YORK**.

11. That at all times hereinafter mentioned, Defendant **POLICE OFFICER JOSEPH HELGERSON** was employed by Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

12. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 1** was employed by Defendant **THE CITY OF NEW YORK**.

13. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 1** was employed by Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

14. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** was employed by Defendant **THE CITY OF NEW YORK**.

15. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** was employed by Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

16. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** was employed by Defendant **THE CITY OF NEW YORK**.

17. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** was employed by Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

18. That at all times hereinafter mentioned, Defendant **POLICE OFFICER EDWIN VEGA** was acting within the scope of and in the course of his employment and under the authority and color of State Law.

19. That at all times hereinafter mentioned, Defendant **POLICE OFFICER JOSEPH HELGERSON** was acting within the scope of and in the course of his employment and under the authority and color of State Law.

20. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 1** was acting within the scope of and in the course of his/her employment and under the authority and color of State Law.

21. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** was acting within the scope of and in the course of his/her employment and under the authority and color of State Law.

22. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** was acting within the scope of and in the course of his/her employment and under the authority and color of State Law.

23. That at all times hereinafter mentioned, Defendant **THE NEW YORK CITY POLICE DEPARTMENT**, its agents, servants and/or employees were obligated to protect the rights of all persons and were required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

24. That at all times hereinafter mentioned, Defendant **POLICE OFFICER EDWIN VEGA** was required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

25. That at all times hereinafter mentioned, Defendant **POLICE OFFICER JOSEPH HELGERSON** was required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

26. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 1** was required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

27. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** was required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

28. That at all times hereinafter mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** was required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

29. That on or about the 25th Day of May, 2015 at approximately 9:15 P.M. o'clock on said day, Plaintiff **MICHAEL BURRELL** was lawfully proceeding as the operator of a 2014 Honda motor vehicle bearing Registration No. GKM3631, New York, 2015 in an eastbound direction on Edenwald Avenue at or near its intersection with Edson Avenue in the County of Bronx, City and State of New York.

30. That at the aforementioned time and location, Plaintiff **MICHAEL BURRELL** was stopped and approached by Defendant **POLICE OFFICER EDWIN VEGA**.

31. That at the aforementioned time and location, Plaintiff **MICHAEL BURRELL** was stopped and approached by Defendant **POLICE OFFICER JOSEPH HELGERSON**.

32. That at the aforementioned time and location, Plaintiff **MICHAEL BURRELL** was stopped and approached by Defendant **POLICE OFFICER "JOHN/JANE DOE" 1**.

33. That at the aforementioned time and location, Plaintiff **MICHAEL BURRELL** was stopped and approached by Defendant **POLICE OFFICER "JOHN/JANE DOE" 2**.

34. That at the aforementioned time and location, Plaintiff **MICHAEL BURRELL** was stopped and approached by Defendant **POLICE OFFICER "JOHN/JANE DOE" 3**.

35. That at all times herein mentioned, Defendant **POLICE OFFICER EDWIN VEGA** stopped Plaintiff without probable cause or reasonable suspicion to believe that he had committed any crime or offense.

36. That at all times herein mentioned, Defendant **POLICE OFFICER JOSEPH HELGERSON** stopped Plaintiff without probable cause or reasonable suspicion to believe that he had committed any crime or offense.

37. That at all times herein mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 1** stopped Plaintiff without probable cause or reasonable suspicion to believe that he had committed any crime or offense.

38. That at all times herein mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** stopped Plaintiff without probable cause or reasonable suspicion to believe that he had committed any crime or offense.

39. That at all times herein mentioned, Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** stopped Plaintiff without probable cause or reasonable suspicion to believe that he had committed any crime or offense.

40. That heretofore and within ninety (90) days after the within claim(s) arose, Plaintiff **MICHAEL BURRELL** caused a Notice of Claim, in writing sworn to by the then Claimant containing the name and the Post Office address of the then Claimant and his attorneys, the nature of the claim(s), the time when, the place where and the manner by which the claim(s) arose, the items of damages and the injuries claimed to have been sustained, to be served upon defendants, respectively, by delivering a copy thereof to a person designated by law as a person to whom such claims may be served.

41. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the respective Defendants.

42. That Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, respectively, have neglected and refused to adjust, settle and/or pay said aforesaid claim(s).

43. That the claims herein have been properly noticed and this action has been started within the appropriate and/or applicable statute of limitations subsequent to any accrual of the causes of action complained of herein.

44. That this action falls within one or more of the exceptions as enumerated in § 1602 of the CPLR of the State of New York.

45. That on or about the 25th Day of May, 2015 at approximately 9:15 P.M. o'clock on said day and thereafter, the respective Defendants, their agents, servant and/or employees had contact with Plaintiff **MICHAEL BURRELL**.

46. That at the above-mentioned location and at all times herein mentioned and at other locations known to Defendant **POLICE OFFICER EDWIN VEGA**, said Defendant **POLICE OFFICER EDWIN VEGA** intentionally placed Plaintiff **MICHAEL BURRELL** in apprehension of imminent harmful or offensive contact and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

47. That at the above-mentioned location at all times herein mentioned and at other locations known to Defendant **POLICE OFFICER JOSEPH HELGERSON**, said Defendant **POLICE OFFICER JOSEPH HELGERSON** intentionally placed Plaintiff **MICHAEL BURRELL** in apprehension of imminent harmful or offensive contact and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

48. That at the above-mentioned location and at all times herein mentioned and at other locations known to Defendant **POLICE OFFICER "JOHN/JANE DOE" 1**, said Defendant **POLICE OFFICER "JOHN/JANE DOE" 1** intentionally placed Plaintiff **MICHAEL BURRELL** in apprehension of imminent harmful or offensive contact and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

49. That at the above-mentioned location and at all times herein mentioned and at other locations known to Defendant **POLICE OFFICER "JOHN/JANE DOE" 2**, said Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** intentionally placed Plaintiff **MICHAEL BURRELL** in apprehension of imminent harmful or offensive contact and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

50. That at the above-mentioned location and at all times herein mentioned and at other locations known to Defendant **POLICE OFFICER "JOHN/JANE DOE" 3**, said Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** intentionally placed Plaintiff **MICHAEL BURRELL** in

apprehension of imminent harmful or offensive contact and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

51. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein said amount to be determined upon the trial of this action.

**AS AND FOR A SECOND CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL BURRELL**

52. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50" of this Verified Complaint with the same force and effect as if more fully set forth at length herein.

53. That at the above-mentioned times and location and at other locations and times known to Defendant **POLICE OFFICER EDWIN VEGA**, Defendant **POLICE OFFICER EDWIN VEGA** came into contact with Plaintiff in a hostile and offensive manner without his consent and with the intention of causing harmful offensive bodily contact caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

54. That at the above-mentioned times and location and at other locations and times known to Defendant **POLICE OFFICER JOSEPH HELGERSON**, Defendant **POLICE JOSEPH HELGERSON** came into contact with Plaintiff in a hostile and offensive manner without his consent and with the intention of causing harmful offensive bodily contact caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

55. That at above-mentioned times and location and at other locations and times known to Defendant **POLICE OFFICER "JOHN/JANE DOE" 1**, Defendant **POLICE OFFICER "JOHN/JANE DOE" 1** came into contact with Plaintiff in a hostile and offensive manner without his consent and with the intention of causing harmful offensive bodily contact caused him to suffer

personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

56. That at the above-mentioned times and location and at other locations and times known to Defendant **POLICE OFFICER "JOHN/JANE DOE" 2**, Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** came into contact with Plaintiff in a hostile and offensive manner without his consent and with the intention of causing harmful offensive bodily contact caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

57. That at the above-mentioned times and location and at other locations and times known to Defendant **POLICE OFFICER "JOHN/JANE DOE" 3**, Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** came into contact with Plaintiff in a hostile and offensive manner without his consent and with the intention of causing harmful offensive bodily contact caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

58. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL BURRELL**

59. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50" and "53" through "57" of this Verified Complaint with the same force and effect as if more fully set forth at length herein.

60. That at the above mentioned times and location and at other locations known to the Defendants including but not limited to the 47th Precinct located at 4111 Laconia Avenue in the County of the Bronx, City and State of New York, Defendants **POLICE OFFICER EDWIN VEGA**, **POLICE OFFICER JOSEPH HELGERSON**, **POLICE OFFICER "JOHN/JANE DOE" 1**, **POLICE OFFICER "JOHN/JANE DOE" 2** and **POLICE OFFICER "JOHN/JANE DOE" 3**,

jointly and severally in their capacity as Police Officers without provocation wrongfully, forcibly and violently seized, struck, assaulted, battered and restrained Plaintiff using excessive and unreasonable force and contact causing Plaintiff to suffer personal injuries, conscious pain and suffering, deprivation of freedom, loss of enjoyment of life, shock and fright and emotional upset that would naturally arise from such an incident.

61. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL BURRELL

62. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50", "53" through "57" and "60" of this Verified Complaint with the same force and effect as if more fully set forth at length herein.

63. That at the above-mentioned times and location, and at other locations known by Defendants, their agents, servants and/or employees, respective Defendants **THE CITY OF NEW YORK, THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER EDWIN VEGA, POLICE OFFICER JOSEPH HELGERSON, POLICE OFFICER "JOHN/JANE DOE" 1, POLICE OFFICER "JOHN/JANE DOE" 2 and POLICE OFFICER "JOHN/JANE DOE" 3**, intentionally, wrongfully, jointly and severally, arrested and confined Plaintiff **MICHAEL BURRELL** and did so without probable or reasonable cause without the consent of the Plaintiff and Plaintiff was aware of his false arrest which was not otherwise privileged, causing him to suffer personal injuries, conscious pain and suffering, depravation of freedom, loss of enjoyment of life, shock and fright and emotional upset that would naturally arise from such an incident.

64. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL BURRELL

65. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50", "53" through "57", "60" and "63" of this Verified Complaint with the same force and effect as if more fully set forth at length herein.

66. That at the above-mentioned times and location and at other locations and times known to the Defendants, including but not limited to the 47th Precinct located at 4111 Laconia Avenue in the County of Bronx, City and State of New York, Defendants **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER EDWIN VEGA, POLICE OFFICER JOSEPH HELGERSON, POLICE OFFICER "JOHN/JANE DOE" 1, POLICE OFFICER "JOHN/JANE DOE" 2 and POLICE OFFICER "JOHN/JANE DOE" 3,** respectively, their agents, servants and/or employees wrongfully detained and imprisoned Plaintiff **MICHAEL BURRELL** without his consent and against his will, and without any reasonable or probable cause, kept him in their custody, at which time he was aware of said wrongful detention and confinement and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of loss, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

67. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL BURRELL

68. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50", "53" through "57", "60", "63" and "66" of this Verified Complaint with the same force and effect as if more fully set forth at length herein.

69. That at the above-mentioned times and location and at other locations and times known by Defendants including but not limited to the 47th Precinct located at 4111 Laconia Avenue in the County of Bronx, City and State of New York, Defendants **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICE EDWIN VEGA, POLICE OFFICER JOSEPH HELGERSON, POLICE OFFICER "JOHN/JANE DOE" 1, POLICE OFFICER "JOHN/JANE DOE" 2** and **POLICE OFFICER "JOHN/JANE DOE" 3**, respectively, their agents, servants and/or employees failed and omitted to properly monitor, supervise and care for Plaintiff **MICHAEL BURRELL** thereby ignoring and failing to properly and promptly respond to Plaintiff **MICHAEL BURRELL'S** physical condition and/or complaints and failed to promptly and properly summon, request, dispatch to and/or provide Plaintiff **MICHAEL BURRELL** with proper and appropriate care, assistance, aide, first aide, and/or emergency medical care and treatment thereby delaying, denying and obstructing Plaintiff from obtaining all prompt and necessary medical care and treatment thereby causing Plaintiff to suffer ongoing conscious pain and suffering, loss of enjoyment of life, shock and fright and emotional upset that would naturally arise from said acts and/or omissions.

70. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL BURRELL

71. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50", "53" through "57", "60", "63", "66" and "69" of this Verified Complaint with the same force and effect as if set forth at length herein.

72. That Defendants **CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, respectively, their agents, servants and/or employees had a legal and/or lawful duty to properly train and supervise its employees, agents and/or servants employed as Police Officers, and more particularly, Defendant **POLICE OFFICER EDWIN VEGA**, Defendant **POLICE OFFICER JOSEPH HELGERSON**, Defendant **POLICE OFFICER "JOHN/JANE DOE"**

1, Defendant **POLICE OFFICER "JOHN/JANE DOE" 2** and Defendant **POLICE OFFICER "JOHN/JANE DOE" 3** herein, in the proper techniques and protocol relative to engaging in all activities and circumstances related to and associated with their respective scope and duties as Police Officers engaged in their employment in the City of New York.

73. That the aforesaid unlawful, illegal and improper acts of the above-mentioned Defendant **POLICE OFFICERS** were caused solely by reason of the negligence and carelessness of respective Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees in employing and retaining dangerous, troublesome, incompetent, untrustworthy, unreliable and rogue individuals who Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, respectively, knew or should have known were a source of danger and/or menace to the lives, liberty and freedom of those persons lawfully present in the County of Bronx, City and State of New York, and more particularly Plaintiff **MICHAEL BURRELL** herein.

74. That Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** respectively, their agents, servants and/or employees failed to exercise reasonable care in the hiring, training, discipline, supervision and/or retention of the above-mentioned Defendant **POLICE OFFICERS**.

75. That by reason of the foregoing, Plaintiff **MICHAEL BURRELL** has suffered injuries, conscious pain and suffering, deprivation of freedom, loss of enjoyment of life, shock and fright and emotional upset that would naturally arise from the above-mentioned incident, acts and/or omissions.

76. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL BURRELL

77. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50", "53" through "57", "60", "63", "69" and "72" through "75" of this Verified Complaint with the same force and effect as if more fully set forth at length herein.

78. That at the above-mentioned times and location and that at other locations and times known by Defendants, **CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER EDWIN VEGA, POLICE OFFICER JOSEPH HELGERSON, POLICE OFFICER "JOHN/JANE DOE" 1, POLICE OFFICER "JOHN/JANE DOE" 2** and **POLICE OFFICER "JOHN/JANE DOE" 3**, their agents, servants and/or employees were negligent, careless and reckless in their respective improper use of excessive force; negligent infliction of emotional distress; negligent hiring, training, supervision, monitoring and retention of agents and/or employees; in failing to have and/or properly use any early warning screening system for psychological profiles and/or detection of untoward behavior and/or personality changes presented by a Police Officer, and more particularly the aforesaid Defendant Police Officers herein; and in failing to supervise, safeguard and/or monitor said Defendant Police Officers herein.

79. That the aforesaid occurrence including said assault, battery, excessive use of force, false and/or wrongful imprisonment, failure to provide any timely medical care and treatment and said negligent hiring, training, supervision, monitoring and retention of its agents and/or employees including any failure to properly screen said Defendant Police Officers herein were cause wholly and solely by reason of the negligence or deliberate indifference of Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, respectively, their agents, servants and/or employees without any negligence on the part of the Plaintiff contributing thereto.

80. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have

jurisdiction herein, said amount to be determined upon the trial of this action.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL BURRELL

81. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs enumerated "1" through "50", "53" through "57", "60", "63", "66", "69", "72" through "75" and "78" through "79" of this Verified Complaint with the same force and effect as if wrongfully set forth at length herein.

82. That Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, respectively, through the Police Commissioner, as a municipal policy maker, in the hiring, training and supervision of the respective Defendant Police Officers as named herein, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and violated Plaintiff's right from freedom of depravation of liberty without due process of law in violation of the fourth, fifth and fourteenth amendments to the Constitution of the United States and 42 U.S.C § 1983 and 42 U.S.C § 1985.

83. That at all times mentioned herein, said Defendant Police Officers were acting under color of law, to wit: the statues, ordinances, regulations, policies and customs and usage of the State of New York and/or the City of New York.

84. That at all times mentioned herein, respective Defendants individually and in conspiracy with each other, under "color of law" deprived Plaintiff of his right to freedom from deprivation of liberty without due process of law in violation of the fourth, fifth and fourteenth amendments of the Constitution of the United States and 42 U.S.C. § 1985.

85. That the respective Defendants subjected Plaintiff to the deprivations of his rights either maliciously or by acting with a reckless disregard for whether Plaintiff's rights would be violated by their actions.

86. That the respective Defendants violated Plaintiff's local, state and Federal Civil

Rights including but not limited to 42 U.S.C. § 1983; 42 U.S.C. § 1988; violated the fourth, fifth, eighth and fourteen amendments to the United States Constitution; The New York State Constitution and Civil Rights Law of The State of New York, employed excessive force; assault, battery, false arrest, unlawful imprisonment and intentional infliction of emotional distress; acted in a discriminatory manner; delayed, denied, and/or obstructed proper medical care and treatment; acted in a discriminatory manner on the basis of Plaintiff's race/ethnicity; Plaintiff was deprived of his Civil Rights by respective Defendants, their agents, servants and/or employees acting under color of State Law; and Defendants supervisors/superiors condoned or ratified improper conduct or a pattern of improper conduct or of deliberate indifference to Plaintiff's rights.

87. That as a direct and proximate result of the aforementioned policy and custom of deliberate indifference of the respective Defendants, their agents, servants and/or employees, Plaintiff was caused to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident and/or the above-mentioned acts and/or omissions committed by respective Defendants, their agents, servants and/or employees.

88. That by reason of the foregoing Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

WHEREFORE, Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Fourth Cause

of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Fifth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Sixth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Seventh Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Eighth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action; Plaintiff **MICHAEL BURRELL** demands judgment against the respective Defendants in the Ninth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action, together with costs, disbursements and punitive damages in an amount to be determined at the time of trial in the within action including any statutory attorneys' fees and disbursements pursuant to 42 U.S.C. § 1988 and such other relief as the Court deems just and proper.

Dated: Great Neck, New York
December 17, 2015

Yours, etc.

**LAW OFFICES OF IRA M. PERLMAN,
P.C. and ROBERT D. ROSEN, P.C.**

Attorneys for Plaintiff(s)

Office & P. O. Address:

60 Cuttermill Road, Suite 206
Great Neck, New York 11021
(516) 535-6666

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

I the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm:

That I am the attorney of record for the Plaintiff in the within matter, and make this affirmation in accordance with C.P.L.R. §3020. I have read the within **COMPLAINT** and know the contents thereof to be true to your Affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon which your Affirmant bases his belief regarding those matters based upon the contents of the file and conversations with the Plaintiff.

This verification is made by your Affirmant and not by Plaintiff for the following reason(s): that the Plaintiff resides in a different county than where your Affirmant maintains an office.

Dated: Great Neck, New York
December 17, 2015



IRA M. PERLMAN

Index/Docket No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

MICHAEL BURRELL,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER EDWIN
VEGA, POLICE OFFICER JOSEPH HELGERSON
and POLICE OFFICERS "JOHN/JANE DOE" 1-3
(INTENDED AS POLICE OFFICERS WHOSE NAMES
AND IDENTIFYING INFORMATION ARE UNKNOWN),**

Defendants.

SUMMONS AND VERIFIED COMPLAINT



LAW OFFICES OF
IRA M. PERLMAN, P.C.
AND
ROBERT D. ROSEN, P.C.
60 CUTTERMILL ROAD
SUITE 206
GREAT NECK, NEW YORK 11021
TELEPHONE: (212) 689-5000 | (516) 535-6666
FACSIMILE: (516) 626-6696

Attorneys for: ***Plaintiff(s)***

Pursuant to 22 NYCRR 130-1.1a, the undersigned, an attorney admitted to practice in the courts of New York State, Certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: **December 17, 2015**

Signature: _____

Print Signer's Name: **IRA M. PERLMAN, ESQ.**
